

		identifies the <i>PPM</i> case, the court’s electronic filing header shows it was actually filed in the <i>Huntington Landmark</i> case. These errors violate rule 3.350(a)(1) & (2). In addition, the attached proof of service does not include a service list. Therefore, there is no evidence the motion was served on all parties in both cases in violation of rule 3.350(a)(2).
5	25-01531711 <i>Nguyen vs. Toyota Motor Sales, U.S.A., INC.</i>	Demurrer to Complaint Defendant Toyota Motor Sales, U.S.A., Inc.’s Demurrer to the Complaint is CONTINUED to July 9, 2026 at 10:00 am in Department C33. A demurrer and motion to strike must be heard at the same time. (Cal. Rules of Court, rule 3.1322(b).) The concurrently filed Motion to Strike is set to be heard on July 9, 2026. Thus, the hearing on the demurrer is continued to the same date.
6	24-01437419 <i>Saeed vs. City of Newport Beach</i>	Motion for Leave to File Cross Complaint Defendant Environmental Construction, Inc.’s (“Environmental”) unopposed motion for leave to file a cross-complaint against Tot Lot Pros and ROES 1-50 is GRANTED. A defendant can cross-complain against a codefendant or third person not yet a party to the action only if the cause of action asserted “(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc. §428.10, subd. (b).) “Cross complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.) If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. (Code Civ. Proc., § 428.50(c).) The proposed cross-complaint asserts causes of action for indemnity, contribution, declaratory relief and breach of contract against Tot Lot Pros. The proposed cross-complaint is therefore permissive. The claims are related to the incident alleged by Plaintiff in his Complaint. Plaintiff alleges that on October 29, 2023, while he was walking on a playground ramp located within Grant Howald Part in the City of Newport Beach, he slipped and fell, allegedly due to accumulated leaves and loose sand from an adjacent sand pit. In connection with the Grant Howald Park

		improvement project, Environmental entered into a subcontract dated August 4, 2020, with Tot Lot Pros for the installation of the playground equipment, surfacing, and related components, including work performed in and around the ramp area where Plaintiff alleges he fell. Further, Environmental contends that under Section 11 of the subcontract, Tot Lot Pros is required to indemnify, defend, and hold harmless Environmental and the City of Newport Beach from all claims, liabilities, damages, and expenses arising out of or connected with its work. Therefore, the court finds that interests of justice weigh in favor of granting the motion for leave to file a cross-complaint against Tot Lot Pros. Environmental is to file the proposed Cross-Complaint, attached to the Motion, without any changes, modifications, or alterations, within 7 days of the date of the hearing. Moving party is to give notice.
7	24-01406771 <i>Simpson vs. FCA US, LLC</i>	1) Motion to Compel Answers to Special Interrogatories 2) Motion to Compel Production 3) Motion to Deem Facts Admitted The following motions are DENIED: 1. Plaintiffs' Motion to Compel Production (ROA 45) 2. Plaintiffs' Motion to Deem Answers Admitted (ROA 47) 3. Plaintiffs' Motion to Compel Answers to SPROGs (ROA 48) It is undisputed that Defendant served untimely but substantive responses after the motions were served, rendering the request to compel responses/deem answers admitted moot. However, Plaintiffs maintain their request for sanctions. Defendant asserts that sanctions are unwarranted because counsel for the parties had already reached an agreement in which Defendant would not serve responses to pending discovery in litigation between the two firms unless responses were specifically requested by Plaintiff's counsel. (Hugret Decl., ¶¶ 3-5.) Defendant's counsel declares Plaintiff sent a letter by email on 12/31/25 with a 7-day deadline to respond to the subject discovery (which had been served in August 2024), then filed the present motions on 1/12/26. Defendant promptly served responses on 2/20/26. In the initial motions, Plaintiffs assert the parties' agreement only extended time to respond by 30 days. However, Plaintiffs have not filed a reply brief responding to Defendant's arguments in opposition. Moreover, Plaintiffs should have engaged in additional meet and confer attempts, such as a phone call to Defendant's counsel, before filing the motions. Defendant has shown it made reasonable efforts to comply with its discovery obligations in the context of the parties' agreement. Therefore, the request for sanctions is denied.